

EMPLOYMENT AGREEMENT

This Employment Agreement ("Agreement") is entered into on this 1st day of April, 2024, by and between:

Apex Technologies India Private Limited, a company incorporated under the Companies Act, 2013, having its registered office at [Address]
AND

Rahul Sharma, an individual residing at Flat 402, Green Glen Layout, Bellandur, Bangalore 560103 (hereinafter referred to as the Employee)

WHEREAS the Company desires to employ the Employee, and the Employee desires to accept employment with the Company;

NOW, THEREFORE, IN CONSIDERATION OF THE MUTUAL COVENANTS CONTAINED HEREIN, THE PARTIES AGREE AS FOLLOWS:

1. APPOINTMENT AND COMMENCEMENT

1.1 Position and Duties

The Employee is appointed to the position of Senior Software Engineer. The Employee will report to the Engineering Director and perform such duties as may be assigned.

1.2 Commencement Date

The Employee's employment shall commence on 15th April, 2024 ("Effective Date").

1.3 Location of Employment

The primary place of employment shall be Bangalore, Karnataka. The Company reserves the right to transfer or reassign the Employee to any other location as may be required.

2. PROBATION PERIOD

2.1 Duration of Probation

The Employee shall be on probation for a period of three (3) months from the Effective Date. The Company may, at its sole discretion, extend the probation period.

2.2 Confirmation

Upon satisfactory completion of the probation period, the Company shall issue a formal letter confirming the Employee's appointment as a regular employee.

3. COMPENSATION AND BENEFITS

3.1 Fixed and Variable Remuneration

The Employee shall receive an annual Cost to Company (CTC) as detailed in Schedule A attached hereto. All payments are subject to applicable laws and regulations.

3.2 Annual Discretionary Bonus

The Employee may be eligible for a performance bonus as determined by the Company's annual performance review cycle. The bonus is at the discretion of the Company.

4. WORKING HOURS AND LEAVE

4.1 Business Hours

Standard working hours are 9:30 AM to 6:30 PM, Monday through Friday. Due to business requirements and client engagements, the Company may require the Employee to work on weekends or public holidays.

4.2 Annual Leave Entitlement

The Employee shall be entitled to eighteen (18) days of earned leave, twelve (12) days of casual/sick leave, and national holidays as per applicable laws.

CONFIDENTIALITY AND NON-DISCLOSURE

5.1 Proprietary Information

During employment and for a period of three (3) years following termination of employment for any reason, the Employee shall maintain the confidentiality of all proprietary information of the Company.

5.2 Return of Company Property

Upon resignation or termination, the Employee shall immediately return all Company property, including laptops, mobile devices

6. INTELLECTUAL PROPERTY RIGHTS

6.1 Work for Hire and Assignment

All inventions, designs, source code, documentation, trademarks, and literary works created by the Employee during the term of

6.2 Moral Rights Waiver

To the maximum extent permissible under applicable law, the Employee irrevocably waives all moral rights in any intellectual pr

RESTRICTIVE COVENANTS

7.1 Non-Compete Restriction

For a period of twelve (12) months following the termination of employment, the Employee shall not directly or indirectly accept

7.2 Non-Solicitation of Clients and Employees

For a period of twenty-four (24) months following termination, the Employee shall not solicit, induce, or attempt to hire any empl

8. TERMINATION AND NOTICE PERIOD

8.1 Notice Period

Either party may terminate this employment agreement by providing sixty (60) days prior written notice.

8.2 Payment in Lieu of Notice

The Company reserves the right, at its sole discretion, to waive the notice period by paying basic salary in lieu of notice. The En

8.3 Immediate Termination for Cause

The Company may terminate this Agreement immediately without notice, salary in lieu of notice, or any severance payment, in t

9. SERVICE BOND AND LIQUIDATED DAMAGES

9.1 Minimum Service Period

In consideration of specialized training provided by the Company upon joining, the Employee agrees to serve the Company for a

9.2 Recovery Amount

If the Employee resigns or terminates employment prior to completing twenty-four months, the Employee shall immediately pay

10. GOVERNING LAW AND DISPUTE RESOLUTION

10.1 Governing Law

This Agreement shall be construed, interpreted, and governed in accordance with the laws of the Republic of India.

10.2 Jurisdiction and Arbitration

Any dispute arising out of or in connection with this Agreement shall be referred to arbitration in Bangalore, Karnataka, conduct

SCHEDULE A COMPENSATION

1. Base Salary: INR 12,00,000 per annum payable in monthly instalments.

2. House Rent Allowance (HRA): INR 6,00,000 per annum.

3. Special Allowance: INR 4,00,000 per annum.

4. Annual Performance Variable: Up to INR 3,00,000 per annum based on performance milestones.

5. Total Target Cost to Company (CTC): INR 25,00,000 per annum.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the day and year first written above.

For Apex Technologies India Private Limited:

Authorized Signatory: _____

Employee:

Rahul Sharma: _____